

Court No. - 39

Case :- WRIT - C No. - 36105 of 2014

Petitioner :- M/S Magma Industries Limited Thru' Director D.K. Garg

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Nripendra Mishra

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Connect and list with Writ Petition (C) No. 51844 of 2009.

Heard learned counsel for the petitioner as well as Shri Nripendra Mishra, learned counsel for the respondent nos. 1 and 2.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 30.06.2014 issued by the respondent No. 2, for additional security.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioner also submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 16.7.2014

Ashok Kr.

Court No. - 5

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Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Nripendra Mishra

Hon'ble Shashi Kant Gupta, J.

Learned Standing Counsel states that in pursuance of earlier order of this court, no medical report has yet been sent by the concerned C.M.O.

As prayed for, list this matter on 20.8.2014 to enable the learned Standing Counsel to seek instructions from the concerned C.M.O.

Order Date :- 11.8.2014

MLK

Court No. - 32

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Petitioner :- M/S Magma Industries Limited Thru' Director D.K. Garg

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & 2 Others

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- A.N. Singh, Nripendra Mishra

Hon'ble Arvind Kumar Tripathi, J.

Hon'ble Salil Kumar Rai, J.

Learned counsel for the petitioner and respondents informed that identical matter has been considered by the coordinate Bench of this Court and the petition has dismissed.

This petition has been filed for quashing of the impugned bill dated 30.6.2014 to the extent of Rs.33,16,080/- issued by the respondent no.2 with further prayer to direct the respondents to pay interest at bank rate since the inception of the petitioner's unit on the security amount already deposited by the petitioner and further prayer is to direct the respondents to refund the security amount already deposited by the petitioner with further prayer to direct in the nature of mandamus declaring Clause 4.20 (i) (L) of the amended Code (amended vide order dated 14.9.2006 by the respondent no.3, notified by the State Govt. on 11.8.2006) as illegal and ultravires Section 47(5) & 47 (4) of the Electricity Act, 2003 with further prayer to issue direction in the nature of mandamus declaring Clause 4.20 (i) of the amended Code (amended with effect from 14th September, 2006) as retrospective in application/operation with effect from 10 June, 2003 (i.e. promulgation of the Electricity Act, 2003).

It is pointed out by learned counsel for the parties that the issues raised in this petition have been decided against the petitioner in Writ-C No.30898 of 2016 (M/s Dev Prayag Paper Mill (Pvt.) Vs. State of U.P. & Ors.) by judgment and order dated 21 March, 2017 whereby this Court has dismissed the writ petition after coming to the conclusion that the demand of additional security by the distribution licensee is not bad.

For all the reasons stated in the aforesaid judgment, this petition stands dismissed.

Order Date :- 19.12.2017

Pramod